

Mutual Non-Disclosure Agreement

1. Parties and Purpose

This Mutual Non-Disclosure Agreement (the "Agreement") is entered into between **[Disclosing Party Name]**, a company incorporated under the laws of India, having its registered office at **[Disclosing Party Address]** ("Disclosing Party"), and **[Receiving Party Name]**, a company incorporated under the laws of India, having its registered office at **[Receiving Party Address]** ("Receiving Party"). The Disclosing Party and the Receiving Party are individually referred to as a "Party" and collectively as the "Parties."

The purpose of this Agreement is to protect the confidentiality of certain proprietary information disclosed by either Party to the other in connection with a potential business relationship or collaboration (the "Purpose"). Each Party acknowledges that it may act as a Disclosing Party and a Receiving Party under this Agreement.

2. Definition of Confidential Information

"Confidential Information" means any and all non-public information, technical data, intellectual property, trade secrets, or know-how, including, but not limited to, research, product plans, products, services, customers, customer lists, markets, software, developments, inventions, processes, formulas, technology, designs, drawings, engineering, hardware configuration information, marketing strategies, finances, or other business information disclosed by the Disclosing Party to the Receiving Party, either directly or indirectly, in writing, orally, or by drawings or observation of parts or equipment.

Without limiting the generality of the foregoing, Confidential Information shall expressly include, but not be limited to, the following categories of information disclosed by either Party:

- **Product Designs:** All specifications, blueprints, schematics, prototypes, software code, algorithms, and related technical documentation regarding the products or services of the Disclosing Party.

- **Customer Lists:** Any and all compilations of names and contact information of customers, prospective customers, or clients of the Disclosing Party, along with associated purchasing histories, preferences, and contractual terms.
- **Marketing Strategies:** All business plans, advertising campaigns, market research, pricing strategies, promotional materials, and strategic initiatives relating to the marketing or sale of the Disclosing Party's products or services.

3. Obligations of the Receiving Party

The Receiving Party agrees to hold all Confidential Information in strict confidence and shall not disclose, reveal, or make accessible such Confidential Information to any third party without the prior written consent of the Disclosing Party. The Receiving Party shall use the Confidential Information solely for the Purpose and shall take all reasonable precautions to protect the confidentiality of such information, employing at least the same degree of care as it uses to protect its own similar confidential information, but in no event less than a reasonable standard of care.

The Receiving Party shall limit access to the Confidential Information to those of its employees, officers, directors, agents, or advisors (collectively, "Representatives") who have a legitimate need to know such information for the Purpose and who are bound by written confidentiality obligations no less restrictive than those contained herein. The Receiving Party shall be fully responsible for any breach of this Agreement by any of its Representatives.

4. Exclusions from Confidential Information

Confidential Information shall not include any information that:

1. Is or becomes generally available to the public through no fault of or breach of this Agreement by the Receiving Party;
2. Was in the Receiving Party's lawful and documented possession prior to disclosure by the Disclosing Party, provided such information was not acquired, directly or indirectly, from the Disclosing Party under an obligation of confidentiality;
3. Is lawfully received by the Receiving Party from a third party without restriction on disclosure and without breach of any obligation of confidentiality owed to the Disclosing Party; or
4. Is independently developed by the Receiving Party without reference to or reliance upon the Confidential Information, as evidenced by written records.

5. Duration of Agreement

This Agreement shall commence on the date of its execution by both Parties (the "Effective Date") and shall continue for a period of **[Number]** years from the Effective Date (the "Term"). The obligations of confidentiality and non-use with respect to Confidential Information disclosed during the Term shall survive the expiration or termination of this Agreement for a period of **[Number]** years from the date of disclosure of such Confidential Information.

Notwithstanding the foregoing, trade secrets of either Party shall be protected for so long as they remain trade secrets under applicable law.

6. Consequences of Breach

The Parties acknowledge that a breach of this Agreement by the Receiving Party may cause irreparable harm and significant injury to the Disclosing Party for which monetary damages alone would be an inadequate remedy. Accordingly, upon any actual or threatened breach of this Agreement by the Receiving Party, the Disclosing Party shall be entitled, without prejudice to any other rights or remedies available at law or in equity, to seek and obtain:

- Immediate injunctive or other equitable relief to prevent or restrain such breach, without the necessity of posting a bond or proving actual damages;
- All monetary damages, including consequential damages and lost profits, arising from such breach;
- Full reimbursement for all costs and expenses, including reasonable attorneys' fees, incurred by the Disclosing Party in enforcing its rights under this Agreement.

Additionally, the Receiving Party shall, at its own cost and expense, take all necessary actions to remedy any breach and to mitigate the damages suffered by the Disclosing Party.

7. Governing Law

This Agreement and any disputes arising out of or in connection with it, including its validity, interpretation, performance, or breach, shall be governed by and construed in accordance with the laws of the Republic of India. The Parties irrevocably submit to the exclusive jurisdiction of the courts located in **[City, State]**, India for the purpose of any suit, action, or proceeding arising out of or relating to this Agreement.

8. General Provisions

8.1 Entire Agreement

This Agreement constitutes the entire agreement between the Parties with respect to the subject matter hereof and supersedes all prior or contemporaneous understandings, agreements, negotiations, representations, and communications, whether written or oral.

8.2 Amendment

No modification, amendment, or waiver of any provision of this Agreement shall be effective unless made in writing and signed by both Parties.

8.3 Severability

If any provision of this Agreement is found to be invalid, illegal, or unenforceable by a court of competent jurisdiction, the remaining provisions shall continue in full force and effect.

8.4 No License

Nothing in this Agreement is intended to grant any right or license under any patent, copyright, trademark, or other intellectual property right of the Disclosing Party, nor shall this Agreement obligate either Party to enter into any further agreement or proceed with any business relationship.

8.5 Waiver

The failure of either Party to enforce any provision of this Agreement shall not be construed as a waiver of such provision or the right to enforce it later.

8.6 Notice

All notices required or permitted under this Agreement shall be in writing and shall be deemed to have been duly given when delivered personally, sent by registered or certified mail (return receipt requested), or sent by a reputable overnight courier service, addressed to the relevant Party at the address set forth above, or to such other address as either Party may designate in writing.